

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2834
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-2199.01, Arizona Revised Statutes, is amended
3 to read:

4 32-2199.01. Hearing; rights and procedures

5 A. For a dispute between an owner and a condominium association or
6 planned community association that is regulated pursuant to title 33,
7 chapter 9 or 16, the owner or association may petition the department for
8 a hearing concerning violations of condominium documents or planned
9 community documents or violations of the statutes that regulate
10 condominiums or planned communities. The petitioner shall file a petition
11 with the department and pay a filing fee ~~in an amount to be established by~~
12 ~~the commissioner~~ OF ~~[\$100]~~ [\$300] PER ISSUE CLAIMED IN THE PETITION. The
13 filing fee shall be deposited in the condominium and planned community
14 hearing office fund established by section 32-2199.05. On dismissal of a
15 petition at the request of the petitioner before a hearing is scheduled or
16 by stipulation of the parties before a hearing is scheduled, the filing
17 fee shall be refunded to the petitioner. The department does not have
18 jurisdiction to hear:

19 1. Any dispute among or between owners to which the association is
20 not a party.

21 2. Any dispute between an owner and any person, firm, partnership,
22 corporation, association or other organization that is engaged in the
23 business of designing, constructing or selling a condominium as defined in
24 section 33-1202 or any property or improvements within a planned community
25 as defined in section 33-1802, including any person, firm, partnership,
26 corporation, association or other organization licensed pursuant to this
27 chapter, arising out of or related to the design, construction, condition

1 or sale of the condominium or any property or improvements within a
2 planned community.

3 B. The petition shall be in writing on a form approved by the
4 department, shall list the complaints and shall be signed by or on behalf
5 of the persons filing and include their addresses, stating that a hearing
6 is desired, and shall be filed with the department.

7 C. On receipt of the petition and the filing fee, the department
8 shall mail by certified mail a copy of the petition along with notice to
9 the named respondent that a response is required within twenty days after
10 mailing of the petition showing cause, if any, why the petition should be
11 dismissed.

12 D. After receiving the response, the commissioner or the
13 commissioner's designee shall promptly review the petition for hearing
14 and, if justified, refer the petition to the office of administrative
15 hearings. The commissioner may dismiss a petition for hearing if it
16 appears to the commissioner's satisfaction that the disputed issue or
17 issues have been resolved by the parties.

18 E. Failure of the respondent to answer is deemed an admission of
19 the allegations made in the petition, and the commissioner shall issue a
20 default decision.

21 F. Informal disposition may be made of any contested case.

22 G. Either party or the party's authorized agent may inspect any
23 file of the department that pertains to the hearing, if the authorization
24 is filed in writing with the department.

25 H. At a hearing conducted pursuant to this section, a corporation
26 may be represented by a corporate officer, employee or contractor of the
27 corporation who is not a member of the state bar if:

28 1. The corporation has specifically authorized the officer,
29 employee or contractor of the corporation to represent it.

30 2. The representation is not the officer's, employee's or
31 contractor of the corporation's primary duty to the corporation but is
32 secondary or incidental to the officer's, employee's or contractor of the
33 corporation's, limited liability company's, limited liability
34 partnership's, sole proprietor's or other lawfully formed and operating
35 entity's duties relating to the management or operation of the
36 corporation.

37 <<Sec. 2. Section 33-1270, Arizona Revised Statutes, is amended to
38 read:

39 33-1270. Department of real estate; enforcement

40 A. ~~[Nothing in]~~ This chapter ~~[shall be construed to]~~ [DOES NOT]
41 increase or decrease or otherwise affect any rights or powers granted to
42 the commissioner of the department of real estate under title 32, chapter
43 20 with respect to the issuance of public reports.

44 B. The commissioner of the department of real estate shall require
45 compliance with [section] [SECTIONS] 33-1215 and [section] 33-1219 in
46 connection with the administration of the subdivision laws of this state
47 under title 32, chapter 20, article 4. The commissioner ~~[shall]~~ [IS] not

1 ~~[be]~~ required to administer or enforce any other provisions of this
2 chapter [BUT SHALL ADMINISTER THE DISPUTE RESOLUTION PROCESS AUTHORIZED
3 UNDER SECTION 32-2199.01].>>

4 <<Sec. 3. Title 33, chapter 16, Arizona Revised Statutes, is
5 amended by adding article 2, to read:

6 ARTICLE 2. ADMINISTRATION

7 33-1831. State real estate department; enforcement

8 [A. THIS CHAPTER DOES NOT INCREASE OR DECREASE OR OTHERWISE AFFECT
9 ANY RIGHTS OR POWERS GRANTED TO THE STATE REAL ESTATE COMMISSIONER UNDER
10 TITLE 32, CHAPTER 20 WITH RESPECT TO THE ISSUANCE OF PUBLIC REPORTS.

11 B. THE STATE REAL ESTATE COMMISSIONER SHALL REQUIRE COMPLIANCE WITH
12 THE RELEVANT PORTIONS OF SECTIONS 33-1215 AND 33-1219 FOR PLANNED
13 COMMUNITIES IN CONNECTION WITH THE ADMINISTRATION OF THE SUBDIVISION LAWS
14 OF THIS STATE UNDER TITLE 32, CHAPTER 20, ARTICLE 4. THE STATE REAL
15 ESTATE COMMISSIONER IS NOT REQUIRED TO ENFORCE ANY OTHER PROVISIONS OF
16 THIS CHAPTER BUT SHALL ADMINISTER THE DISPUTE RESOLUTION PROCESS
17 AUTHORIZED UNDER SECTION 32-2199.01.]>>

18 Enroll and engross to conform

19 Amend title to conform

And, as so amended, it do pass

JEFF WENINGER
CHAIRMAN

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